

25SMCV06019 25SMCV06019

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-14

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Case Number: 25SMCV06019 Hearing Date: July 14, 2026 Dept: P

Tentative

Ruling

Mitra

Mehdizadeh Nazarian v. Raymond F. Jerozal, Jr., et al., Case No. 25SMCV06019

Motions:

(1)

Plaintiff's

Motion to Compel Responses to Form Interrogatories and Request for Sanctions
against Defendant Raymond F. Jerozal, Jr.

(2)

Plaintiff's

Motion to Compel Responses to Special Interrogatories and Request for Sanctions
against Defendant Raymond F. Jerozal, Jr.

(3)

Plaintiff's

Motion to Compel Responses to Request for Production of Documents and Request
for Sanctions against Defendant Raymond F. Jerozal, Jr.

(4)

Plaintiff's

Motion to Deem Requests for Admissions Admitted against Defendant Raymond F.
Jerozal, Jr.

(5)

Plaintiff's

Motion to Compel Responses to Form Interrogatories and Request for Sanctions
against Defendant Gilbert Francisco Rodriguez

(6)

Plaintiff's

Motion to Compel Responses to Special Interrogatories and Request for Sanctions
against Defendant Gilbert Francisco Rodriguez

(7)

Plaintiff's

Motion to Compel Responses to Request for Production of Documents and Request
for Sanctions against Defendant Gilbert Francisco Rodriguez

(8)

Plaintiff's

Motion to Deem Requests for Admissions Admitted against Defendant Gilbert
Francisco Rodriguez

Hearing

Date: July 14, 2026

Background

Plaintiff Mitra

Nazarian ("Nazarian") sues Defendants Raymond F. Jerozal, Jr., d/b/a Rayco
Security Loss Prevention Systems and Gilbert Francisco Rodriguez ("Defendants")
for personal injury arising from a car accident on August 21, 2024, on or near
3rd St. and Oakhurst Dr. in Beverly Hills, CA.

On November

18, 2025, Nazarian filed the complaint.

On December

24, 2025, Defendants answered.

On March 9,

2026, Plaintiff filed these eight motions to compel Defendants to respond to
form interrogatories, special interrogatories, requests for production of

documents, and to deem RFAs admitted. On June 29, 2026, Defendants filed opposition to these four motions. On July 6, 2027, Plaintiff replied.

Governing Law

If a responding party has not produced any responses to form interrogatories, special interrogatories, requests for production of documents, or requests for admission, they may move to compel the responding party to produce answers, and objections are waived. (See Code Civ. Proc. § 2030.290(a) [interrogatories]; Code Civ. Proc. § 2031.300 [requests for production of documents]; Code Civ. Proc., § 2033.280(a) [requests for admission].) However, when the responding party serves substantially compliant responses before the hearing, the court can still grant the motion (if it finds the responses fail to resolve the issues raised by the motion) and grant sanctions. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, (2007) 148 Cal.App.4th 390, 409.)

California

Rules of Court, rule 3.1348(a) provides, “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.”

Analysis

Defendants

Defendants contend that they responded to the form interrogatories, special interrogatories, requests for production of documents, and requests for admission on March 11, 2026, two days after Nazarian filed these motions, and that the delay was due to their attorney’s family emergency. (Starinieri Decl., ¶ 2.)

In

reply, Plaintiff does not contest that Defendants’ responses were substantially compliant but argues that sanctions are still mandatory. (reply, p. 2.)

The

Court has reviewed Plaintiff’s discovery responses and finds them to be substantially compliant. The responses are verified and substantively respond

to the questions asked. Plaintiff's eight motions to compel are MOOT.

Sanctions

are mandatory against an unsuccessful moving party or opposing party unless the party's motion or opposition is substantially justified or the failure to respond was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc. § 2030.290 [interrogatories]; Code Civ. Proc. § 2031.300 [requests for production]; Code Civ. Proc., § 2033.280(c) [requests for admission].)

Defendants

argue that the delay was due to their attorneys' family emergency. However, Defendants' family emergency only arose after their discovery responses were due on February 13. Nazarian repeatedly followed up on the discovery requests. Defendants' paralegal's failure to communicate Defendants' attorney's family emergency is not excusable neglect.

Nazarian

requests \$1,860 in sanctions for each of his eight motions: attorneys' fees for two hours of work preparing each motion, two hours reviewing and replying to each motion, and two hours for travelling to and appearing at the hearing at \$300 per hour. (Domingo Decl., ¶ 9.) Plaintiff's counsel's rate is reasonable for attorneys in the Los Angeles Area. Two hours of work preparing each motion is reasonable, but two hours to review each opposition and file a reply is excessive given that the oppositions were essentially identical and only a single brief consolidated reply was filed. Accordingly, the Court awards Nazarian sanctions for two hours of work preparing each motion, 2 hours total for reviewing the oppositions and preparing a consolidated reply, plus one hour appearing for the hearing – for a total sanction amount of \$6,180 (8 motions at two hours each, plus two hours for consolidated reply; plus 1 hour for hearing, times \$300 per hour, plus \$60 of filing fees for each motion).

Conclusion

Nazarian's

motions to compel responses are DENIED as moot. Plaintiff is GRANTED \$6,180 in sanctions.